

23SMCV03341 23SMCV03341

County: los-angeles
Division: Civil Law and Motion
Department: 207
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Case Number: 23SMCV03341 Hearing Date: August 10, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

August 10, 2026

CASE NUMBER

23SMCV03341

MOTION

Post Undertaking

MOVING PARTY

Defendant Sara D. Tarvaran

OPPOSING PARTY

none

MOTION

This case arises from a collision between an automobile and a pedestrian. On July 20, 2023, Plaintiff Mary Agnes Klock ("Plaintiff") filed suit against Defendant Sara D. Tarvaran ("Defendant") alleging a single cause of action for general negligence.

Defendant now moves for an order requiring Plaintiff to post an undertaking pursuant to Code of Civil Procedure section 1030. The motion is unopposed.

ANALYSIS

1.

UNDERTAKING

"When the plaintiff in an action or special proceeding resides out of the state, or is a foreign corporation, the defendant may at any time apply to the court by noticed motion for an order requiring the plaintiff to file an undertaking." (Code Civ. Proc., § 1030, subd. (a).) The plaintiff is not required to file an undertaking unless "there is a reasonable possibility that the moving defendant will obtain judgment in the action or special proceeding." (Code Civ. Proc., § 1030, subd. (b).) The defendant is not required to show that there is no possibility that the plaintiff can prevail at trial, but rather must demonstrate only that it is reasonably possible that the defendant will prevail. (*Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, 1432-1433.) The defendant must also submit an affidavit stating the nature and amount of costs and attorney's fees the defendant has incurred, and expects to incur throughout the remainder of the proceedings. (Code Civ. Proc., § 1030, subd. (b).)

"If the court, after hearing, determines that the grounds for the motion have been established, the court shall order that the plaintiff file the undertaking in an amount specified in the court's order as security for costs and attorney's fees." (Code Civ. Proc., § 1030, subd. (c).) If the court grants the motion and the plaintiff fails to file the undertaking within the time allowed, the court must dismiss the plaintiff's action or special proceeding as to the defendant in whose favor the order requiring the undertaking was made. (Code Civ. Proc., § 1030, subd. (d).)

Defendants move for an order requiring Plaintiff to post an undertaking in the amount of \$32,409.43, on the grounds that Plaintiff resides in Plano, Texas and there is a reasonable

possibility that Defendant will prevail in this action. The motion is unopposed.

a.

Procedural Issues

As a threshold matter, the moving papers must be served at least sixteen (16) court days prior to the hearing. (Code Civ. Proc., § 1005, subd.

(b). Here, the Court finds Defendant's proof of service to be defective.

The proof of service indicates Defendant electronically transmitted the moving papers in PDF format via personal service. It is unclear to the Court how Defendant could have electronically transmitted a PDF document on Plaintiff's counsel by personal service, but not electronic service. Further, because the proof of service lists both physical and electronic mail addresses for Plaintiff's counsel, it is unclear to the Court at which address Plaintiff's counsel was served.

These deficiencies are particularly salient in light of the fact that Plaintiff has not opposed the motion. As such, a proper proof of service is necessary to ensure that Plaintiff's due process rights are adequately protected before the Court can enter the requested order.

CONCLUSION AND ORDER

Finding Defendant's proof of service faulty, the Court cannot grant the relief requested. In lieu of denying the motion, the Court continues the hearing on the motion to September 10, 2026 at 8:30 a.m. in Department 207 to allow Defendant to serve the moving papers, if necessary, under Code of Civil Procedure section 1005.

Defendant shall provide notice of the Court's ruling and of the continued hearing date, and file the notice with a proof of service forthwith.

DATED: August 10, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court